

When revolutionary insurgency gripped much of Latin America in the 1960s, the Cuban Revolution's impact on Chile reflected the country's unique political history. As it did throughout Latin America, Castro's revolution inspired the radicalization of politics, increased demands for change, and triggered mobilization for land reform. But with the exception of the anti-system *Movimiento de Izquierda Revolucionaria* (Movement of the Revolutionary Left, MIR), founded in 1965 by students at the University of Concepción, the radicalization of Chilean politics occurred primarily within the existing institutional framework. As a result of the leftward shift of electoral politics between the 1961 and 1965 congressional elections, the right's share of the vote fell from 30.4 percent to 12.5 percent. The center benefited most from the right's decline, particularly the new and dynamic Christian Democratic Party, which rapidly won over the Radicals' constituency as well as votes from both left and right. Meanwhile, both the center and the left had incorporated ideas from the Cuban Revolution, and in the 1964 presidential election, voters were offered a choice between two versions of revolution: the Marxist program of Socialist Salvador Allende, and the "revolution in liberty" of Christian Democrat Eduardo Frei. The right bloc supported Frei, the lesser of the evils in their view, in order to prevent Allende's election. Frei won with 56.1 percent to Allende's 38.9 percent.<sup>4</sup>

Frei's administration (1964–1970) was progressive, even radical compared to previous Chilean governments. It legalized the unionization of agricultural workers; launched an ambitious land reform; invested in education, housing, and health; and took over a half interest in the U.S. copper companies that dominated Chile's export economy. Frei's reform program, however, was a political failure: it was far too radical for conservatives, most of whom had voted for Frei and thus felt betrayed, and too slow and timid for the left. In 1970, the refurbished right presented its own candidate against the Christian Democrats and the left candidate, Salvador Allende, who headed the *Unidad Popular* (Popular Unity, UP) coalition of Socialists, Communists, and four smaller non-Marxist parties. A longtime leader in the Socialist Party, Allende ran on a platform of accelerating change and moving Chile quickly to socialism. He won with 36.3 percent of the vote versus 34.9 for the right candidate and 27.8 for the Christian Democrat.<sup>5</sup>

Salvador Allende, a medical doctor and veteran politician, was the world's first, and only, freely elected socialist who was committed to eliminating large-scale capitalism in his country. He had first been elected to Congress in 1937; between 1966 and 1970, he served as president of the Senate. He had been a presidential candidate in 1952, 1958, and 1964. A decade after the Cuban Revolution had shown the possibility of radical change, Allende's

election stunningly brought home to Chile the reality of revolution: revolution by the ballot box, the "Chilean road to socialism," or as Allende called it, the "revolution of red wine and empanadas" (traditional meat and onion pies), evoking the ingredients of Chilean popular celebrations. Despite Allende's pledge to work within the boundaries of Chile's 1925 constitution, his commitment to socialism threatened the elites' economic privileges, their land, and their very way of life. To many of Chile's *campesinos* and workers, the election of their "*compañero presidente*" was the prelude to a previously unimaginable utopia of abundance and equality. The contestation of these opposing and irreconcilable views of the future exacerbated the polarization begun in the 1960s and rapidly eroded the Chilean traditions of compromise and civility, endangering the shared value of democracy as the guiding principle of politics and ultimately straining the political system to the breaking point.<sup>6</sup>

U.S. governments throughout the 1960s had watched the radicalization of Chilean politics with growing concern. From the early 1960s through the 1970 presidential election, U.S. administrations spent millions of dollars to strengthen the opposition to the Chilean left. Having failed to prevent Allende's election, Nixon and his national security adviser, Henry Kissinger, set out to prevent the president-elect from being inaugurated. The CIA pursued dual strategies to accomplish this. Track I involved creating a climate for a military coup—a highly improbable occurrence in a country whose armed forces respected civilian governance and the 1925 constitution. Track II focused on the constitutional requirement that Congress formally elect the president in the absence of a majority in the popular vote—a very common occurrence given Chile's multiparty system. Although Congress had always elected the candidate who obtained the greatest number of votes, the CIA attempted to bribe Christian Democratic legislators to vote for the runner-up, who would resign immediately, making way for Frei to be reelected. Neither approach worked, and Allende was inaugurated on November 4. Two days later, the National Security Council met in Washington to discuss how to "bring him down."<sup>7</sup>

Although hampered by the UP's minority status in both chambers of Congress, Allende quickly threw down the gauntlet to Chilean and foreign capitalists by vigorously pursuing his campaign promise to expropriate large-scale business, industry, landholdings, and copper mining. Initially stunned and disoriented by Allende's victory, the Chilean right regrouped and within a year had forged an alliance with the centrist Christian Democrats, whose largely middle-class constituency balked at the uncertainties and discomforts of rapid change. The right-center alliance used its congressional majority and

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control of the judiciary to block the president's legislative agenda wherever possible, while Allende, unwilling to back down, used his executive powers and obscure laws from the Depression era to forge ahead. By Allende's second year, confrontation replaced dialogue. By his third year, the stakes were higher: the survival of the constitutional regime.<sup>8</sup>

The widening chasm between pro- and anti-Allende Chileans was based on more than ideological and programmatic disagreements. The MIR along with radicalized elements of Allende's coalition, particularly members of his own Socialist Party, proselytized and agitated ceaselessly, hoping to push the revolution beyond Allende's legal prescriptions and establish a revolutionary society beyond bourgeois law, while rightists responded with armed groups and sabotage. Hypermobilization in both the countryside and the large cities brought peasants and workers face to face with landowners and bosses in ways that were inconceivable to either side just a few years earlier. Occupations of haciendas and factories by their workers spawned a virulent reaction on the part of owners and managers, culminating in two "bosses' strikes" organized by the country's business interest associations, or *gremios*, and subsidized by the CIA: the first, in October 1972, shut down the country's economy while sparking even more occupations, and the second, in August 1973, was not lifted until Allende's overthrow.

During Allende's third year in office, "polarization became the dominant feature of political language and interaction, and the more violent sectors in that polarization . . . came to the fore."<sup>9</sup> The extreme left talked stridently about arming their followers and replacing the armed forces with popular militias; on the right, *Patria y Libertad* (Fatherland and Liberty) destroyed infrastructure, assassinated leftists, and painted "Djakarta," an allusion to the slaughter of Indonesian Communists following Sukarno's 1965 overthrow, on walls and buildings. As the lines hardened, families, friends, and organizations split. Constant agitation, shortages, violence, name-calling, and press sensationalism became a way of life. To Allende supporters, the economic elites and political right were anachronisms—supercilious "momios," or mummies, whose day had passed. To Allende opponents, the left was made up of extremists, criminals, and subversives intent on establishing a Soviet-style dictatorship. The lexicon of the time included "it's us or them," "you can't make an omelet without breaking a few eggs," and "the cancer has to be rooted out." This language of vilification employed by both sides, in the words of the truth commission that probed human rights violations under the Pinochet dictatorship, "paved the way for fear which engenders hatred and hence brutality and death."<sup>10</sup> Chile, in short, had become a "nation of enemies."<sup>11</sup>

When it came on September 11, 1973, the coup surprised few people, even in a country where the military's adherence to law and constitution had long been taken for granted. Allende's revolution had spun out of control; Chile was virtually bankrupt, beset by shortages and runaway inflation, and increasingly ungovernable. Both sides had openly discussed a military uprising; in late August, the opposition majority in Congress had passed a resolution that in effect called for the military to remove Allende. Many UP loyalists fully expected a coup; some naively thought they were prepared for it. Weary of daily confrontation and permanent crisis, many ordinary Chileans welcomed military intervention, with the expectation that the armed forces would follow a conventional Latin American script: seize control, detain and deport top government officials, hold power for a year or two, and then call elections to restore civilian rule. Much of the officer corps anticipated the same. Many Christian Democrats, members of Chile's largest party, fully expected Eduardo Frei, whom the constitution had barred from seeking a second consecutive term in 1970, to be elected president again.<sup>12</sup>

The armed forces along with the Carabineros, Chile's national police, rose on the morning of September 11. Following the navy's seizure of the principal port of Valparaíso, rebel forces quickly occupied strategic points throughout the country. After President Allende rejected an ultimatum to surrender, Hawker-Hunter jets strafed the Moneda, Chile's historic presidential palace, leaving it in flames. Allende took his life inside the burning building. In Santiago's industrial belt and shantytowns, where large-scale resistance was expected, the few armed clashes that occurred ended within forty-eight hours. The military sealed Chile's borders for eleven days, turning the country into a huge prison camp for thousands of Allende supporters, and imposed an around-the-clock curfew. Radio broadcasts announced lists of persons required to turn themselves in to the new authorities. Many people complied with these orders in order to clear their names; some were never seen again.<sup>13</sup>

After the first day, with Allende dead and the expected resistance having failed to materialize, the military had won virtually complete control of Chile. Yet for several weeks a brutal crackdown filled makeshift jails, hospitals, and morgues. Allende supporters, whose political beliefs and organizations had been perfectly legal until the morning of September 11, were exposed *post facto* criminals in the eyes of Chile's new masters. Stunned by the display of military might and the severity of the repression, thousands of leftists went underground, sought asylum in embassies, or attempted to flee the country after the borders reopened. Many people were shot on the spot for

defying the curfew; others, the authorities claimed, were killed resisting arrest or attempting to escape after detention—explanations for murder that the dictatorship would use for years to come. Bodies were left on streets and roads and dumped into rivers, including the Mapocho, which runs through the heart of Santiago; others were buried in secret graves, beginning the soon-to-be routine practice of “disappearing” the regime’s enemies.<sup>14</sup>

The highest-profile Allende supporters, including cabinet ministers and party leaders, were arrested and flown to an improvised prison on Dawson Island in the icy Straits of Magellan. Another fifty thousand persons throughout the country were rounded up and held in soccer stadiums, military bases, government buildings, and navy ships. The National Stadium, where some seven thousand prisoners were held, and the navy ship *Esmeralda*, anchored at Valparaíso, became enduring symbols of the postcoup repression. Many prisoners were tortured and hundreds executed in these and other locales throughout the country during the first weeks of the new regime.

Almost two thousand people were tried by hastily assembled military war tribunals, which lacked the minimum guarantees for a fair trial. Some three hundred were executed immediately; others were sentenced to prison camps. In addition to military repression, right-wing vigilantes in rural areas exacted revenge on *campesinos* who had challenged the traditional social order by joining unions, agitating for land, and occupying haciendas. These and other class and personal scores were settled in the atmosphere of bloodshed and revenge that dominated after September 11.<sup>15</sup>

In one of its first statements, the junta declared that it would hold power “only as long as circumstances require[d]” for it to restore Chile’s “broken institutionalality.”<sup>16</sup> Despite this discourse of democratic restoration, it was clear from the outset that the military was not following the standard coup script. Attacking and burning the Moneda palace, the most visible and venerated symbol of Chilean democracy, revealed the military leadership’s determination to reject any limits on the use of force to destroy their enemies—an ominous prelude to the establishment of the terrorist state. On the evening of September 11, the commanders of the army, navy, air force, and Carabineros swore themselves in as a governing junta and decreed a state of siege befitting a “state or time of war,” which suspended civil liberties and greatly expanded the jurisdiction of the military courts. The declaration of war, the use of force far out of proportion to what was needed to dislodge the Allende government, and the prolonged application of massive repression reinforced the message of the bombing of the Moneda.<sup>17</sup>

As the junta coalesced, it gave additional signals that its agenda extended well beyond the overthrow of Allende and that its rule would be lengthy. In

addition to granting itself absolute authority to govern without restrictions, the junta began dismantling all institutions that might stand in the way of its consolidation of power. It replaced UP provincial governors with military officers, removed all mayors and city councilors, banned left parties and suspended the others, and closed Congress. The junta instituted strict censorship, dissolved the national labor federation, appointed military rectors for the universities, and restricted the activities of professional organizations. Within weeks, almost no institutions remained as counterweights to absolute military rule. In November the junta declared the country’s election registries null; they were later burned. Meanwhile, just days after the coup, the junta had appointed a committee to study reforming the 1925 constitution.<sup>18</sup>

At the junta’s first public appearance, on the night of September 11, air force commander in chief General Gustavo Leigh had declared that it was the military’s duty to extirpate the “Marxist cancer.”<sup>19</sup> While the other three junta members spoke that night in more conciliatory tones, their words and actions soon revealed their commitment to Leigh’s proposition. General Augusto C. Pinochet, army commander in chief and leader of the junta, initially assured Chileans that there would be “neither victors nor vanquished,” that the military’s mission was to “salvage the country”; but in an October speech, he claimed in messianic tones that the coup had been God’s work, and he committed himself to the “heroic struggle” to carry out a “moral cleansing” in order to “extirpate the root of evil from Chile.”<sup>20</sup>

In order to justify its massive crackdown on Allende supporters and the emerging crusade against Marxism, the junta announced on September 17 that it had discovered Plan Z, and later it printed the *White Book of the Change of Government in Chile* to make its case.<sup>21</sup> Widely distributed at home and abroad, the *White Book* used assorted documents, photographs of arms caches, and bold claims in an attempt to convince the world that in the sinister Plan Z, the Allende government, aided by Cuban operatives, had planned to assassinate top military officers and opposition political figures. The *White Book* stated, “The Unidad Popular and Salvador Allende, dissatisfied with trampling upon the majoritarian will of the country, with violating the substance and the form of the constitution and of the laws, with disregarding the condemnation and the warnings of the other Powers of the State, with ruining the country economically and financially, and with having sown and spread hate, violence and death throughout the nation, was prepared and ready to carry out this self-coup designed to conquer an absolute power based on force and crime, and installing the ‘people’s dictatorship.’”<sup>22</sup> In addition to justifying the overthrow of Allende, by demonizing the left as assassins, servants of Moscow, and enemies of the

country, the *White Book* clearly laid the groundwork for a holy crusade against the left.

On September 11, the military had declared itself at war, but by all indications it had won the war in a matter of hours. The decisive actions of September eliminated any possibility of effective resistance and restored a state of order that Chile had not experienced in months, even years. Plan Z had been concocted to justify the violent repression of the left, but despite a search for the arsenals and training camps alleged in the junta's booklet, little evidence was found to substantiate the claims of grave threats to the fatherland. However, as the junta's commitment to eradicating the left deepened, it required the fiction of war to justify the extreme measures it would need to employ. Thus, to validate its existence, rally public support, and unify the military around its mission, the junta invented a war that it would fight for sixteen and a half years.

In order to convince the country of the gravity of the Marxist threat, intensify the wartime atmosphere, and spread anti-Marxist fervor to the provinces, where the takeover had encountered virtually no resistance, the junta staged an event that became known as the "Caravan of Death" in late September and October. General Sergio Arellano Stark was dispatched on a helicopter tour of eight cities and towns where he was to convene war tribunals to quickly try and sentence detainees and increase the sentences of those already convicted but not executed. While on this mission, Arellano's party also summarily shot seventy-five people and buried them in secret graves.<sup>23</sup>

The Caravan of Death made regional commanders and other ranking officers take a position: either they stood with the hard line emanating from the junta, they retired, or they faced severe consequences. Lieutenant Colonel Olagier Benavente, stationed at Talca when Arellano visited his base, recalled, "That fear that General Arellano aroused in Talca spread quickly throughout Chile. I understood that you had to be tougher if you wanted to survive."<sup>24</sup> The exercise was a success: in addition to sowing terror among civilians, it enabled the junta to weed out the small number of pro-Allende officers, the larger number who favored a quick return to civilian government, and weak-willed officers who balked at the measures taken. It ensured the ascendancy of the mission to eradicate the left.<sup>25</sup>

By the end of 1973, sixteen weeks after the coup, the military, abetted by a small number of civilians including members of *Patria y Libertad*, had exacted a heavy toll on the human rights of Chileans. Tens of thousands had been arrested without warrants, thousands had been tortured, and hundreds were tried and sentenced in war tribunals. Nearly two thousand people had been killed outright or had disappeared following detention.<sup>26</sup> The exodus of

leftists, which would become a true diaspora, was well under way. The junta had unleashed state terrorism on the Chilean people on September 11 in order to establish control rapidly and completely. During the ensuing sixteen weeks, terrorism was an instrument of policy, but it was driven also by hatred, vengeance, pent-up rage, an air of triumphalism, and perhaps by the taste of absolute power over the enemy—an enemy described by Pinochet on the morning of the coup as "those filthy people (*mugrientos*) who want to ruin the country."<sup>27</sup>

Almost immediately, both domestic and international institutions raised concerns as the need for defense of human rights became apparent. The severity of the repression, the hardening of the military's mission, and the junta's dismantling of virtually all institutions of civil society made it impossible for individuals to act on their own or to form groups to offer aid on the scale required. As a result, the Chilean human rights movement developed under the auspices of the only institutions capable of carving out space for human rights work: the churches. While the dominant Roman Catholic Church was the most visible defender of human rights, denominations representing small numbers of Chileans—the Methodist and other Protestant churches, the Greek Orthodox Church, and the Jewish community—also played a central role, aided by financial support from the World Council of Churches and other international sources.<sup>28</sup>

The churches responded within weeks, first by setting up a *Comité Nacional de Ayuda a los Refugiados* (National Committee for Aid to Refugees, CONAR)—also known as Committee 1—to help find refuge for the thousands of leftists being hunted down, including many foreigners. They worked with the Intergovernmental Committee for European Migration, the UN high commissioner for refugees, and the International Red Cross to first get the persecuted into embassies and then to arrange safe conduct and passage to countries willing to accept them as refugees. By the end of October, some four thousand safe conducts had been issued, and another five thousand were pending. On October 6, the churches founded Committee 2—the *Comité de Cooperación para la Paz en Chile* (Committee for Cooperation for Peace in Chile, COPACHI)—to provide legal, material, and spiritual assistance to the persecuted and the growing numbers of unemployed. These two church-based organizations functioned for nineteen and twenty-seven months, respectively, during the period of the most violent repression, despite being labeled Marxist and being constantly harassed by the regime.<sup>29</sup>

Complementing the struggle of the incipient domestic human rights movement were the efforts of human rights advocates around the world. From the day of the coup, human rights in Chile were the subject of global

concern. News and images of soldiers herding unarmed civilians at rifle point, stadiums packed with prisoners, bodies washed up on the banks of the Mapocho, and a grim General Pinochet looking sinister in dark glasses filled newspapers and television screens. Within days of the coup, Amnesty International and the International Commission of Jurists requested UN intervention to save lives. The International Red Cross sent an inspection team less than two weeks after the coup. Other human rights NGOs sought permission to visit but were initially denied. Several embassies, including the Mexican, Venezuelan, Argentine, Swedish, Italian, and French, opened their doors to provide temporary sanctuary for the hunted. The dictatorship expelled Swedish ambassador Harald Edelstam in December for his exceptionally active role in offering asylum.<sup>30</sup>

Before the end of 1973, the executive secretary of the Inter-American Commission on Human Rights, a delegation from Amnesty International, and several other groups of lawyers and human rights advocates visited Chile. While the Nixon administration embraced the new regime and renewed aid and loans it had cut to undermine Allende, the U.S. Congress discussed human rights in Chile within a week of the coup and held full-scale hearings in December. Other visits, investigations, and hearings were announced. To counter the negative foreign reaction, the junta established the Dirección de Información Exterior (Foreign Information Directorate) to purchase favorable coverage in media around the world through U.S. public relations firms.<sup>31</sup>

### Background to the Terrorist State

Historically, no South American country had a less politicized military than Chile. Yet the transformation of a military institution removed from partisan and ideological politics into a political machine with an ideological mission and the will to use any means to accomplish it did not happen overnight. There had been currents of political activism in the armed forces at least since the 1920s: individual officers collaborated with right-wing organizations, and military lodges such as Línea Recta (Straight Line) and Por un Mañana Auspicio (For an Auspicious Tomorrow, PUMA) of the 1950s brought together officers who supported antidemocratic rightist agendas. While there were moderate and leftist officers in the ranks, overall the military had a "continual and longstanding tradition of anticommunism dating practically back to the Russian Revolution."<sup>32</sup>

From the onset of the Cold War, and particularly in the wake of the Cuban Revolution, the Chilean military, along with their counterparts

throughout the Americas, had been bombarded with national security doctrine and its centerpiece, anti-Marxism. From outside the barracks, however, it was difficult to gauge the degree to which the anti-Marxist lesson had been absorbed because, unlike the militaries of most other countries, the Chilean officer corps accepted a constitutionally sanctioned division of labor: the politicians talked while they trained to defend the country. Moreover, in a country where Marxist parties had enjoyed legality since the 1920s, had held cabinet posts since 1938, and represented a third of the electorate, military pronouncements about the dangers of Marxism were out of bounds. But the evidence from after September 11 suggests that long before Allende's election, anti-Marxist indoctrination had penetrated deeply. When tested by the Allende administration, the military's anti-Marxism proved stronger than its time-honored tradition of constitutionalism.<sup>33</sup>

Among some officers, the experience of the UP years translated intellectual opposition to Marxism into a visceral hatred. In addition to many of Allende's policies, the polarization, hypermobilization, and growing chaos that characterized Allende's last year and a half could not have pleased an institution that valued order and hierarchy. The greatly exaggerated but loudly trumpeted existence of armed leftist groups during Allende's administration naturally concerned the institutions that officially monopolized armed force. The ultraleft's talk of abolishing the armed forces and replacing them with people's militias, as happened in Cuba, and its alleged attempts to provoke rebellion in the military ranks, seemed to challenge the very survival of the armed forces. Some officers worried about a civil war and its potentially divisive impact on the military.

Breaking with Chilean tradition, Allende in desperation had brought officers into his cabinet during two periods of political crisis in order to provide an image of probity and stability. Resentment at being used to prop up a government that appeared to tolerate antimilitary words and actions further stoked the anti-Marxist fires. Had General Carlos Prats, a committed constitutionalist and friend of Allende, not been army commander during most of Allende's presidency, the coup might well have come earlier. Ultimately, the UP years put the military's anti-Marxism and its tradition of nonintervention on a collision course. That collision occurred on September 11, 1973.<sup>34</sup>

Developments in the coup's aftermath also help explain the institutionalization of state terrorism. Those military men who had been convinced of the imminence of a Marxist takeover—the thesis of Plan Z—fully expected important groups inside and outside the country to embrace their cause and express gratitude for the salvation of Chile. But rather than thanking the military, most of the Western democracies, the Chilean Catholic Church, and

the Christian Democrats—most of whom initially endorsed the coup—condemned the brutality of the repression. This lack of comprehension and support frustrated the military leaders and left them resentful; rather than modifying their attitudes and behavior, the hard-liners dug in to shoulder the task of fighting World War III. This reaction reinforced their mistrust of all “politics” and led them to shun even the mainstream conservative political establishment that might have been able to exercise a moderating influence over their actions.<sup>35</sup>

Fundamental also to the development of state terrorism was a small but aggressive group of advocates of countersubversive warfare, mostly majors and colonels who, in the fluid situation following the coup, were able to impose their vision of a holy crusade. The “DINA group” of virulently anti-Marxist officers, so named for the secret police agency they would create and run, was operating cohesively even before the coup. Led by Colonel Manuel Contreras, the group moved quickly and ruthlessly after September 11 to promote its cause and extend its power. It soon achieved disproportionate influence with the military command, particularly with Pinochet, who had assumed command of the army only three weeks before the coup. As a last-minute convert to the plot to overthrow Allende, he seized upon the extremist agenda and the influence of the DINA group to firm up his position and unify the military around himself. Those who questioned the ascendancy of the DINA group were outmaneuvered, forcibly retired, and in some cases even killed.<sup>36</sup>

Though executed by the military and police, the coup of September 11, 1973, and the state terrorism that ensued did not take place in a political vacuum. A majority of Chileans may have welcomed the coup. After the Christian Democrats withdrew their support in reaction to the degree of repression and to the military's emerging plans for systemic change, Pinochet still retained the backing of large numbers of rightist civilians who either endorsed state terrorism or acquiesced in it, although normally denying its existence. Some went beyond supporting the regime. Many collaborated as cabinet ministers, administrators, policy consultants, and bureaucrats; as owners of mass media, editors, and writers; or as judges. Some worked directly in the terror apparatus. Others, including influential individuals who lent their names and prestige to the regime, collaborated in less direct ways.

In common with other Latin American countries, Chile had had extreme right groups and movements throughout the twentieth century, but they did not prosper because elite interests were effectively represented and protected by two political parties—the Conservatives and Liberals—and by interest associations such as the Sociedad Nacional de Agricultura (National Society

of Agriculture, SNA) and similar organizations for other economic sectors. Even after losing their supremacy in the 1920s, these rightist parties, relying on their large landowner base to control the rural vote, were able to deflect threats to their interests. But with the mobilization and radicalization catalyzed by the Cuban Revolution—and an unrelated reform that introduced the secret ballot in 1958—the right's control of the crucial rural vote evaporated. Realizing this, the right had supported Christian Democrat Eduardo Frei in the 1964 presidential election to prevent a likely victory by Salvador Allende in a three-way race. Elections the following year decimated the right's power in Congress, leaving the two parties with 7 of 45 seats in the Senate and only 9 of 147 in the Chamber of Deputies. The worst nightmare of the right then followed: an aggressive program of agrarian reform that not only took landowners' property but further undermined their political power, leading the traditional elites to feel “on the verge of extinction.”<sup>37</sup>

After regrouping in 1966 under a new name, the Partido Nacional (National Party), the right approached the 1970 presidential election with a degree of optimism. But when Allende won and launched his program to establish socialism, a large part of the right withdrew its allegiance to democratic politics—an allegiance that had been fraying since the mid-1960s as the right's political power plummeted—and embraced the heretofore minor currents of the antidemocratic right. Even while contesting Allende in Congress, in the media, and in the streets, some rightists opted for a military solution to their crisis. In the words of a scholar of the extreme right, “in moments of crisis the boundaries between moderate and extreme right fade.”<sup>38</sup> The trajectory of politics from the early 1960s through the Allende administration was such a crisis for the traditionally moderate Chilean right. Thus, in addition to supporting the coup, much of the right would endorse any methods the dictatorship might use to persecute the left and restore the elites' tattered status and power—even state terrorism.

Following the coup, a small but influential coterie of extreme right-wing civilians, known as *gremialistas* for their role in marshaling Chile's business and professional associations, or *gremios*, in the right's struggle against Allende, came to the fore. They made themselves readily available to the military government in order to guide it toward their ideal: a Chile run by the upper class, free of social conflict, and bound by a Catholic nationalist or integralist ideology. Led by Catholic University law professor Jaime Guzmán, this group found a receptive audience among the officers. The *gremialist* view of politics, already shared by some within the military, was that the Chilean political system, from values to constitution to elections, was fatally flawed because it had allowed Marxism to flourish for decades and had opened the

door to Allende's election. Under these influences, the military's mission broadened beyond eradicating the left; it included rolling back the clock to the early twentieth century, to a time before Chile's social struggles had begun in earnest and when oligarchic rule was uncontested.<sup>39</sup>

Having seized and consolidated power, the commanders realized that they possessed a historic opportunity to recast the country in fundamental ways. Within a few months, Pinochet's and the junta's vision, largely shaped by the *gremialistas*, had begun to jell. The government's March 1974 "Declaration of Principles," written primarily by Guzmán, proclaimed, "Chile is not neutral toward Marxism, and the present government does not fear or hesitate to declare itself anti-Marxist." The armed forces would hold power indefinitely "because the task of reconstructing the country morally, institutionally, and materially requires profound and prolonged action." To accomplish this, "it is absolutely necessary to change the mentality of Chileans" by extirpating Marxism and its doctrine of class struggle and replacing it with the values of conservative Catholicism, class harmony, and Chilean nationalism.<sup>40</sup> The institutional rebuilding would require the elimination of virtually all existing political institutions, save the courts, and the eventual construction of a "protected democracy" that would prevent the resurgence of leftist influence.

After some initial debate, the regime decided that the economic rebuilding would follow the neoliberal model advocated by the so-called Chicago Boys, a cadre of Catholic University economists trained by Milton Friedman at the University of Chicago. This version of unfettered capitalism, suitable to the emerging global economy, required not only undoing all of Allende's economic measures, but stripping away the many accretions of state economic control and ownership that had accumulated since the Great Depression—a monumental task. The free market model involved shrinking government budgets, cutting social programs, eliminating the high tariffs that protected Chilean industry, and selling off state-owned enterprises.<sup>41</sup>

The government's plan to construct what would be essentially a new country was extremely ambitious. With the exception of Fidel Castro's Cuban Revolution, no twentieth-century Latin American regime had ever set forth such a far-reaching agenda. Taking his cues from the Soviet Union, which had struggled in the 1930s to create the "New Soviet Man"—people with attitudes and values of socialist solidarity rather than capitalist individualism—Castro tried to create a "New Cuban Man" in the early 1960s through Marxist education, censorship of alternate views, and suppression of dissent.<sup>42</sup> Obviously, such a complete transformation, whether in the Soviet Union or Cuba, could not be accomplished within a framework of democracy and civil liberties; it had to be forced.

Pinochet's task would be similar to Castro's. Ridding Chile of politics, inculcating new values, building new institutions, and coping with the consequences of a new economic dogma could not be accomplished by persuasion. Like Castro's overwhelming challenge, the recasting of Chile would need to be forced. Although the "cancer of Marxism" had infected only part of Chilean society, albeit a major one, Pinochet's use of force would be far more systematic and brutal than Castro's: Pinochet would rely upon state terrorism to effect a final solution to the problems of Marxism and subversion.<sup>43</sup>

### State Terrorism Institutionalized

By early 1974, observers noted a change in the repression. Large-scale arrests became rarer, bodies turned up less frequently, and fewer soldiers patrolled the streets. The truth commission established after the dictatorship's end noted the difference: "Many disappearances took place in the latter months of 1973, but for the most part these were efforts to evade responsibility for murder by hiding the bodies. By contrast, the instances of disappearance after arrest in the 1974–1977 period reflect a pattern of prior planning and centralized coordination."<sup>44</sup> The regime was shifting from the ad hoc but lethal terrorism it unleashed on September 11 to institutionalized terrorism. To increase its efficiency and parry the world reaction to the brutality of the postcoup period, the regime developed a new approach to eradicating the left that was designed to cover up the practices of state terrorism and offer plausible deniability to charges of gross human rights violations: the disappearance.

Although disappearance became the preferred method of eradicating subversives, some people were still killed outright, either by design or as the result of bad information, botched abductions, or resistance to arrest. When dealing with corpses, the secret police invariably explained the deaths as resulting from prisoners' attempting to escape (the *ley fuga*), armed attacks on the police, or shootouts among rival bands of subversives. The formal terror apparatus that was functioning before the beginning of 1974 reaped its greatest harvest in the following three and a half years, but it remained intact and continued to function to the regime's final days.

State terrorism was directed at a wide range of people, almost all of them associated with the left. Indeed, no one defined by the regime as a leftist, even if unaffiliated with the UP government or the Marxist parties, could consider him- or herself exempt from persecution. Many were targeted for the ex post facto crimes of having embraced Marxist ideology or having belonged to Marxist organizations, both perfectly legal prior to September 11,

1973. Some victims of state terrorism had violated laws under the Allende government, such as occupying factories and farms or possessing weapons prohibited by arms control laws. Others were targeted because they belonged to broad categories of people automatically suspected of disaffection from the regime—students, teachers, intellectuals, journalists, members of several professions, workers, union members and leaders, and slum dwellers. Some people were accidental or random victims of repression.<sup>45</sup>

Chile's poor were constantly in the repressors' sights, initially because they were assumed to be Allende supporters, and later because, as the primary victims of the new economic model, they had to be tightly controlled to prevent protests that might embarrass or even threaten the regime. The consequences of the Chicago Boys' radical policies for Chile's workers were massive unemployment, contracting real wages, and, with their unions emasculated and government social programs cut, little hope for remedying their dire situation. Thus, at the time of the coup and again during the regime's economic "shock" measures of 1974–1976 and the economic crisis of 1982–1985, slums were especially targeted for close control. Troops and police conducted *allanamientos*, or sweeps, of the areas by surrounding them to prevent escape, searching house by house for weapons and subversive materials, and detaining men, some of whom were sent to prison camps where they became hostages to the correct comportment of their families and neighbors.<sup>46</sup>

*Campesinos* lost out through the reversal of one of Latin America's most ambitious agrarian reform programs. The military immediately halted land distribution and returned much expropriated property to its former owners. It slashed government technical and financial aid to the new family-farm sector created under Frei and Allende, making it unable to compete in the new free market. With landowner control restored and *campesino* leaders persecuted, the rural poor were thoroughly intimidated and constituted no threat to the praetorian peace.<sup>47</sup>

As a rule, Christian Democrats were marginalized but left alone so long as they respected the ban on political activity. Dissidents were harassed, some times exiled, but rarely killed or disappeared. Rightists had no reason to worry; indeed, the peace and, for some, the prosperity they enjoyed after 1973 were the fruits of state terrorism.<sup>48</sup>

The dictatorship utilized all the elements at its command to impose terror. Each military branch and the Carabineros had their own intelligence service that was used both to gather information on "subversives" and to carry out much of the day-to-day repression. New formations, such as the shadowy Comando Conjunto (Joint Command) death squad run by the au-

force in 1975–1976, appeared and disappeared during the dictatorship. Even after the creation of the Dirección Nacional de Inteligencia (National Directorate of Intelligence, DINA), the junta's new secret police, the apparatus of state terrorism continued to experience rivalries and overlapping tasks and jurisdictions.<sup>49</sup>

The DINA was the core of the state terror apparatus. By November 1973, as the junta's mission and long-term ambitions were taking shape, Colonel Manuel Contreras, leader of the hard anitleft faction, was beginning to operate a new "super" intelligence agency, institutionally independent of existing ones, under the junta's direct authority. Decree law 521 formally established the DINA a few months later. Its published articles seemed innocuous enough; they charged the agency with "gathering all information . . . needed for policy formulation and planning and for the adoption of those measures required for the protection of national security and the development of the country." In three secret, unpublished articles, the law established DINA's primacy among intelligence services and authorized the new secret police agency to conduct raids and make arrests without restraints.<sup>50</sup>

Creation of the DINA put the most extreme of the military's anti-Marxists in charge of the emblematic instrument of state terrorism. As director of the DINA, Contreras recruited like-minded individuals from within the military and police for this elite secret police dedicated to the "total extermination of Marxism"; he also hired civilians, including some from the paramilitary *Patria y Libertad*.<sup>51</sup> Eventually reaching some four thousand agents, the DINA also had thousands of informants and collaborators. Although it officially reported to the junta, the DINA quickly became Pinochet's personal instrument. Several ranking officers clashed with Contreras over the DINA's methods and power; one general, in a letter to Pinochet, referred to it as "a true Gestapo."<sup>52</sup> Doubters and opponents of the DINA expressed themselves at considerable peril, for this "state within a military state" was central to the enhancement of Pinochet's personal power over the junta and the country, which allowed him in June 1974 to elevate his status from head of the junta to "supreme head of the nation," and in December to president of the republic.<sup>53</sup>

The DINA was a multifaceted secret organization that used its "practically unlimited power" to "conceal its actions and assure its impunity."<sup>54</sup> Its repressive apparatus consisted of two intelligence brigades—the Metropolitan Brigade for Santiago and another for the rest of the country—that reported through Contreras to Pinochet. The Metropolitan Brigade assumed greater importance because leftists, since it was almost impossible for them to avoid detection and detention in the smaller cities and towns, usually sought refuge

in the sprawling capital with its three million people and the possibility of clandestine existence. The Metropolitan Brigade was divided into the Caupolicán and Purén units, each of which was further divided into operations groups, among them the Halcón, Aguila, and Vampiro (Hawk, Eagle, and Vampire) groups, which conducted the repressive operations using their own offices, vehicles, and weaponry. They operated without constraints, taking advantage of the state of siege and the curfew, which, though gradually shortened, remained in force for several years, giving the DINA the upper hand against the enemy trapped for several hours each night in safe houses that became increasingly unsafe.<sup>55</sup>

The DINA's efforts focused on the regime's most dangerous enemies: the MIR and the Socialist and Communist parties. The Socialists and Communists had lost much of their upper ranks to prison, execution, or exile in the months following the coup, but both parties succeeded in establishing underground units. These clandestine groups lacked offensive capability and posed no threat to military control, but they served the exiled leadership by smuggling out intelligence and keeping alive the hope of mounting resistance. The MIR leadership initially rejected the option of exile and went underground, determined to resist. The regime considered the MIR especially dangerous because of its radicalism, its claims to have armed fighters, and its successful proselytizing among *campesinos* and slum dwellers. Ultimately, all three underground organizations and their real or potential collaborators were targeted because, despite their weakness, they stood in the way of the complete extermination of the left inside Chile.<sup>56</sup>

In pursuing the left underground, the DINA refined the methods of repression that had characterized the first few months after the coup and had led to international investigations and condemnations of the junta's human rights policies. It immediately established a number of secret detention and torture centers around the country. Among those in and around the capital were Cuatro Alamos, an exclusive DINA facility inside the Tres Alamos prison camp set up to hold political prisoners; Londres 38, the former downtown offices of the Socialist Party's Santiago section; and a house at José Domingo Cañas 1367. After it opened in mid-1974, Villa Grimaldi was the DINA's most important secret detention center until its closing in 1977.<sup>57</sup>

A three-acre site with a luxurious main house and numerous outbuildings, Villa Grimaldi was confiscated by the military after the coup from a wealthy friend and supporter of President Allende. It was located in the Andean foothills near Santiago. The DINA used Villa Grimaldi, which it called Teranova Barracks, as headquarters of the Metropolitan Brigade, and built cells and torture rooms in various buildings on the property. Approximately five

thousand enemies of the regime passed through Villa Grimaldi; of those, at least 240 were tortured to death, murdered, or disappeared.<sup>58</sup>

The DINA's *modus operandi* began with a detention, usually but not always under cover of the curfew. Detainees were not taken to regular jails where they would have become part of the public record; thus, when family members inquired about missing loved ones, the authorities had no arrest record and hence no knowledge of the victim's whereabouts. Instead, detainees were driven, handcuffed and hooded or stuffed into the trunks of cars, to Villa Grimaldi or another DINA detention center, where records were secret. This procedure gave a modicum of credibility to government denials of responsibility, such as that issued by Interior Minister Sergio Fernández in 1978: "It is likely that the great majority of the presumed disappeared have gone underground or have been killed in confrontations, and the false documents they used prevented their identification."<sup>59</sup>

Following abduction, prisoners were interrogated under torture in specially equipped chambers to extract intelligence that could be used for more arrests and to break their will to resist the military state. A Chilean human rights organization catalogued seventeen categories of torture used by the DINA specialists. Among the more standard were the electric cattle prod applied to sensitive areas such as the genitals, anus, nipples, and eyes; "the gall," the application of electricity to an individual strapped to a metal bed frame; the "submarine," submerging the head in toilet water until the victim nearly drowns, and then repeating it; the "dry submarine," near suffocation using a plastic bag; the "telephone," the application of extremely loud noise to the ear; "the parrot's perch," hanging prisoners by the wrists and ankles, which were bound together; prolonged beatings; repeated rape; drugs; and infinite varieties of psychological torture, the worst of which was being forced to watch or hear the torture of a loved one. In the words of a woman forced to hear the screams of her brother under torture, that experience was "the most profound terror that a human being can feel."<sup>60</sup> Of course, the more sadistic torturers invented specialties all their own. Medical doctors often supervised these sessions to monitor victims' condition so as to maximize torture without causing death, at least until the torturers decided to conclude their work with murder.<sup>61</sup>

Gladys Díaz reputedly spent a longer time in Villa Grimaldi than anyone else who survived to describe the experience. A radio journalist and MIRista, Díaz experienced three months of torture at Villa Grimaldi after being arrested with her husband in 1975. They were forced to watch each other being tortured the first few days, until he was removed from Villa Grimaldi and disappeared. She was then confined in a former water tower in a space so

small that she could not lie down. In the torture chamber, she was subjected to electricity, drugs, the submarine, and the telephone, and was beaten by a karate expert who broke her hip. The days when she was not physically tortured were filled with psychological torture: the playing of tapes of children's voices to make her believe the DINA had her son, and the hours of anticipating the next torture session. She was also made to witness two murders: one a beating by chains, the other a shooting.

Discussing her survival, Gladys remembered, "The ways that one finds to defend oneself are unlimited. I sometimes dreamed about beautiful things. . . . I remember having awakened to the sound of a little bird that was outside, and how I was able to keep the sound of the bird's singing in my ears for days." On torture, she reflected, "The worst part of torture is not the physical pain that you suffer—I think that the worst part of torture is to have to realize in such a brutal way that human beings are capable of doing something so aberrant to another person as torturing them." Although always blindfolded, Gladys learned her torturers' identities; she saw them all after the end of the dictatorship.<sup>62</sup>

Among them was Osvaldo "guatón" (big belly) Romo. A street thug and police informant, he was recruited by the DINA for his useful sadism. Interviewed by journalist Nancy Guzmán, the completely unrepentant Romo proudly proclaimed, "I destroyed whole families." When electricity was applied, he reported, the person strapped to the grill "jumps, yells, twists, sometimes pisses and shits on themselves, really. But nothing happens to them, they don't die. They think they are dying but no, what happens is their heart jumps out their ears, but sometimes it even does them good." Asked about rape of torture victims, he responded, "That's a tale that Marxists invent. Who was going to rape those disgusting, dirty, urine-covered women with blood running down their legs and covered with filth?" Despite his intimate knowledge of torture, Romo said, "I have not violated anyone's human rights." Justifying everything, Romo maintained, "There was a war here. . . . I was a combatant."<sup>63</sup> While publicly denying that government agents tortured, Pinochet reportedly told two religious leaders privately, "You have to torture them, because without it, they don't sing. Torture is necessary to exterminate communism."<sup>64</sup>

After gaining all the information they could—sometimes none—and often severely and permanently damaging prisoners' bodies and minds, DINA operatives decided the victims' fate. Some were released with severe warnings against discussing their ordeals; they were usually dropped at some remote locale at night to be found the next morning by passersby. Others were transferred to official prisons, where they were documented, could receive

visitors, and enjoyed much-improved treatment. Others were murdered and their bodies disappeared so as to leave no record of the death or burial. The bodies were disposed of in various ways: they were buried in secret individual or mass graves; they were interred in cemeteries as unknown persons (N/N); they were thrown into rivers; or they were dropped from aircraft into the ocean or onto inaccessible Andean peaks.<sup>65</sup>

The DINA and torturers like Romo added layers to a culture of fear that had gripped Chile since the Allende years.<sup>66</sup> During the UP government, people on the right feared radicals, violence, and losing their property, and some feared living under a Marxist dictatorship. On September 11, fear shifted to the other side and intensified exponentially as draconian economic measures made the poor fear for their livelihood and the extreme repression made leftists fear for their lives and those of their loved ones. Most intimidating was the knowledge that there was no shield from state terrorism; anticipating the fate that awaited one after falling into the DINA's hands paralyzed and isolated people. Said a former Socialist organizer, "You would confide only in people you were absolutely sure of, and even then there was always a seed of doubt."<sup>67</sup> In the words of one who lived it, "Our fear makes us live half-lives, repressed and suffocated."<sup>68</sup> Even grieving over killed or disappeared loved ones was done "in complete solitude and in fear, which made the situation more terrible."<sup>69</sup> Reflecting nearly thirty years after the coup, a woman whose son was disappeared said, "Fear, fright, horror endure in the consciousness. Terror cannot be removed from the collective memory."<sup>70</sup>

Fear did not end at Chile's borders, for the DINA recognized no territorial limits to its mission. In November 1975, Contreras hosted his counterparts from Argentina, Uruguay, Bolivia, and Paraguay at the "First Inter-American Conference on National Intelligence," at which all agreed to collaborate across borders in the hunt for Marxists. In honor of the Chilean initiative, they named their plan "Operation Condor" after the Chilean national bird. Thus was formally launched "the most sinister state-sponsored terrorist network in the Western Hemisphere, if not the world," a South American anti-Marxist axis which Brazil would join the following year and Ecuador and Peru in 1978.<sup>71</sup> Yet an informal Operation Condor had already been working for over a year; it had harassed and killed Chilean and Uruguayan exiles in Argentina, including former army commander and Allende loyalist General Carlos Prats and his wife, blown up outside their Buenos Aires apartment in September 1974.<sup>72</sup>

Operation Condor involved cross-border coordination, intelligence gathering, and repression of leftists in member countries and beyond, including Europe and the United States. Agents from targets' home countries worked

side by side with agents of fellow Condor countries to track, torture, and kill exiled "subversives." Among Condor's prominent victims were Christian Democratic leader Bernardo Leighton and his wife, both severely wounded in Rome; former UP cabinet member Orlando Letelier, killed with his assistant in Washington, D.C.; and MIR leader Edgardo Enríquez, abducted in Argentina in a joint operation, sent to Villa Grimaldi, tortured, and disappeared. U.S. intelligence and the State Department knew about Operation Condor and collaborated in various ways.<sup>73</sup>

### Exile

Forced exile—a violation of two articles of the Universal Declaration of Human Rights—was a hallmark of the Pinochet regime.<sup>74</sup> Exile was a central stratagem for securing absolute control and eradicating the left within Chile. The regime expelled several thousand and offered exile as an alternative to long prison terms. More commonly, although exile was forced, individuals had some control over its timing. Some were among the thousands of public- and private-sector employees who were purged and blacklisted to prevent their finding other employment in Chile. Others lost their jobs as the economy contracted. Many chose exile after harassment, detention, or torture. Others sensed the approaching repression, as did a nonpartisan leftist radio and television journalist in 1974: "We met at Lucho's apartment and began to talk about which of our friends were still free, which . . . were already prisoners, and which . . . were dead. Then we began to realize that the circle was closing in on us. . . . I said, 'Well, I'll go to Peru for six months and come back.'" From Peru she moved to Canada, unable to return to Chile for eleven years.<sup>75</sup>

Some two hundred thousand Chileans, nearly two percent of the national population, went into exile for political reasons in at least 110, and possibly as many as 140, countries on all continents. Chileans went to such geographically and culturally distant places as Kenya, Bangladesh, and even the Cape Verde Islands and Greenland.<sup>76</sup> A major reason for the exiles' global dispersal was the rise of repressive governments in neighboring South American countries and the actions of Operation Condor. Most of the thousands of Chileans who fled across the Andes to Argentina, the nearest original haven, moved on as the danger level rose following the death of Argentine president Juan Perón in 1974. In Latin America, only Venezuela, Mexico, and Cuba took in large numbers of exiles. The Soviet bloc countries welcomed many refugees, and the Western European countries, along with Canada and Australia, offered sanctuary to the greatest number. The United States accepted relatively few.

Life in exile was difficult, regardless of one's destination. Exiles carried heavy psychological baggage: the bitterness of defeat; feelings of guilt for leaving behind jailed, dead, or disappeared comrades; and memories of torture. They arrived with dreams shattered, families torn apart, careers destroyed. These and other traumas had to be borne without the comfort and solidarity provided by the typical Chilean extended family. As a result, exiles suffered high rates of depression, divorce, alcoholism, and suicide. Almost all exiles, even those who stayed abroad for the entire sixteen and a half years of the dictatorship, experienced the syndrome of "living with the suitcases packed"—a situation of suspended reality, of living neither in Chile nor in their host country.

What kept many of the exiles going was the political struggle. Having lost the battle at home, they sought to undermine Pinochet from the "external front." Upon arriving at their exile destinations, militants of the Socialist and Communist parties, the MIR, and the major national labor union, under the umbrella of the UP in exile, reconstituted their organizations. At the local level, the parties disseminated information, organized demonstrations, and sold empanadas to raise money and consciousness. To mobilize support among the citizenry of the host countries, the exiles worked with parties and student, labor, church, and human rights groups; founded solidarity committees; and launched campaigns to free selected political prisoners and ban trade with Chile. The exiles' intense and uncompromising political activity carried a risk: owing to the long reach of Operation Condor, "an entire generation of political exiles [was] forced to look over their shoulder wherever they were in the world."<sup>77</sup> Exiles' efforts were crucial to keeping the regime's dark side in the world's consciousness and in countering the influence of powerful multinational business interests that supported the dictatorship for reopening Chile to their capital.

The Pinochet regime constantly vilified the exiles. Since most left through normal channels, on scheduled flights with papers in order, the regime portrayed exile as voluntary. It attempted to discredit exiles by concocting the image of a "golden exile"—a comfortable existence that contrasted harshly with the economic hardship that ordinary Chileans faced at home in the early part of the dictatorship. They were denounced as subversives and foreign agents: "Every exiled Marxist is an agent of international subversion." They were traitorous turncoats responsible for the campaign of calumny—not against the regime, but against Chile: "The jet set of exile dedicate themselves full-time to anti-Chilean activism."<sup>78</sup> Exiles could not return without the written permission of the interior ministry; many carried passports stamped with the letter L, signifying that they were on the list of those prohibited from returning. This policy remained in force until 1984.

## The Judiciary and Mass Media

The suppression of human rights under the military boot was greatly facilitated by the collaboration of two important national institutions: the judiciary and the mass media. Despite closing down all other potentially independent governmental institutions upon seizing power, the military left the court system intact, affirming early on that "the powers of the judicial branch [remain] fully in force."<sup>79</sup> Yet two factors in effect gave the DINA and their collaborators free rein. First, under the state of siege, the military justice system enjoyed sweeping authority that infringed on the judiciary's normal jurisdiction. Second, the civilian courts turned a blind eye to the suppression of human rights.

From the Supreme Court down, the justices consistently refused to intervene to stop the terror. When presented with habeas corpus petitions related to disappearances, which they were obligated to act upon within twenty-four hours, judges simply accepted the word of security forces that the individual was not under detention. When the authorities admitted to having the individual under arrest, judges accepted the official version of events, approving the arrest. Of the nearly nine thousand habeas corpus petitions filed by the Catholic Church, only twenty-three were accepted, most of them after 1984.<sup>80</sup> When presented with overwhelming evidence of crimes, such as the case of fifteen *campesinos'* bodies found in an abandoned mine at Lonquén, judges declared themselves incompetent under the state of siege, referring the case to military justice, with predictable results. In the words of the report of the Chilean National Commission on Truth and Reconciliation, "The judicial branch as a whole proved ineffective in both protecting human rights and punishing their violation."<sup>81</sup>

Why did the Chilean judges, heirs to a well-respected legal tradition with a solid reputation for integrity and a history of independence from political pressures, abet the regime in its suppression of human rights? There are several answers. The Supreme Court had engaged in bitter battles with Allende over property rights and governmental powers; as a result, the justices welcomed the coup and cooperated with the new regime. Also, the judicial system was hierarchical and authoritarian; the Supreme Court controlled the career prospects of lower court judges, leading most to fall silently into line. Legal training in Chile emphasized literal interpretation of the law, and having embraced the military junta as the government, judges acquiesced in the decree laws that the military government issued. Any lingering issues of the legitimacy of governance by decree were canceled by the adoption of Pinochet's new constitution in 1980. Finally, in the words of a repentant for-

mer prosecutor for the dictatorship, "The country was full of hatred. We all became part of it."<sup>82</sup>

The mass media likewise supported, by commission or omission, the exercise of state terrorism. All pro-UP newspapers, magazines, and radio and television stations were shut down at the time of the coup. The government also controlled several newspaper, television, and radio outlets directly. Most of the remaining media, including the powerful Agustín Edwards empire which published Chile's largest and most influential newspaper, *El Mercurio*, were enthusiastic in their support of the regime and served as its apologists. After a period of prior censorship, the surviving media were allowed to publish freely so long as they exercised self-censorship to filter out criticism of the dictatorship's core policies and key personalities. Those that crossed the line of the acceptable, primarily Christian Democratic-affiliated media, were suspended periodically from publishing or broadcasting or were shut down for good. Further control was exercised by the requirement of government authorization for new media to begin operations. Although policy was slightly liberalized in 1984, the bulk of the media decisively supported the dictatorship and abetted the suppression of human rights to the regime's end.<sup>83</sup>

Government and progovernment media published as fact the disinformation that constantly flowed from government sources—even stories as bizarre and transparent as the 1975 Operation Colombo, the dictatorship's most elaborate story about leftists killing fellow leftists in internecine feuds to cover disappearances carried out by the DINA. Operation Colombo was intended to blunt international condemnations of human rights policy by attempting to substantiate the government's repeated assertions that most of the missing had gone into exile. Since the disappeared could not be located among the living exiles, the DINA produced cadavers that it claimed were those of individuals whose families had reported them as missing. In collaboration with Argentine security forces, it placed several mutilated bodies on Argentine streets with fake Chilean documents; pinned to their clothes were notes indicating that the MIR had done the killing. The DINA created a fictitious magazine in Argentina and appropriated an obscure newsletter in Brazil to publish lists totaling 119 Chilean "extremists," all reported as missing by their families, who had reportedly been killed in internecine fighting with fellow Marxists.<sup>84</sup>

The media docilely or enthusiastically printed the story without questioning the sources. One newspaper ran the headline "MIRistas exterminated like rats." *El Mercurio* smugly editorialized, "The politicians and foreign newsmen who asked themselves so many times about the fate of these members of the MIR and blamed the Chilean government for the disappearances

of many of them, now have the explanation that they refused to accept. Victims of their own methods, exterminated by their own comrades, every one of them demonstrates with tragic eloquence that violent people end up falling victims to the blind and implacable terror that they provoke.<sup>85</sup>

### The Human Rights Movement: Domestic and International

The original church-based, ad hoc human rights organizations that had formed within weeks of the coup gave rise to the two organizations that formed the backbone of the human rights movement. The ecumenical Fundación de Ayuda Social de las Iglesias Cristianas (Social Aid Foundation of the Christian Churches, FASIC) was founded in April 1975 and continues its work today. The Vicaría de la Solidaridad (Vicariate of Solidarity), a ministry of the Archbishopric of Santiago, was created on January 1, 1976. It was dissolved after the return of civilian government, but the foundation that it created prior to disbanding supports ongoing human rights work. Alongside these organizations and those founded later, numerous individual priests and progressive religious orders also ministered to the people of the shantytowns and poor rural areas, doing everything possible to protect them against the dual onslaught of repression and hunger, often at grave risk to their own personal safety.<sup>86</sup>

The Vicaría de la Solidaridad assumed the most visible role of moral opposition to the regime and defender of human rights. The Chilean Catholic Church's commitment to the defense of human rights, which was supported by a majority of Chile's twenty-eight bishops, reflected the liberalization of the hierarchy—a long process driven by domestic concerns beginning in the 1930s and by the reorientation of the universal church after 1958 under popes John XXIII and Paul VI. The 1966 Conference of Latin American Bishops in Medellín, Colombia, had been the decisive event in the rise of a more active and compassionate church committed to social change to benefit the poor. The spread of liberation theology in Latin America dated from the Medellín conference. While the hierarchy had not embraced liberation theology in its more radical formulations, the Chilean bishops, not without considerable dissent, had adopted progressive views on social issues by the late 1960s.<sup>87</sup>

Despite the government's hostility to its work and its very existence, the Vicaría was able to survive and conduct important work for two reasons: legally, it was not an autonomous agency but an integral unit of the archdiocese of Santiago; and its founder and patron, Cardinal Archbishop Raúl Silva Henríquez, was an astute and compassionate churchman who considered the defense of human rights a logical extension of his longtime work in defense

of Chile's poor and downtrodden. By virtue of the church's power and prestige, the Vicaría was able to carve out space for its work. During the dictatorship's first decade, when political opposition inside the country was essentially nonexistent, the Vicaría acted as "the voice of the voiceless."<sup>88</sup> Cardinal Silva Henríquez skillfully set the course of the Vicaría's mission. Without directly challenging military rule, the Vicaría pragmatically sought to ameliorate the regime's worst human rights abuses. It placed a high value on each political prisoner freed, each torture session avoided, and each life saved. It also collaborated in relief efforts for impoverished slum dwellers and unemployed workers. The Vicaría offered a wide range of material, moral, psychological, and legal services to victims and their families and offered education and training in the meaning and promotion of human rights. It gathered voluminous evidence of human rights abuses, and, despite the courts' consistent refusal to cooperate, its lawyers filed thousands of habeas corpus and other legal briefs. Its bimonthly *Solidaridad* bulletin detailing its legal actions provided documentation for international human rights efforts. The Vicaría created a large archive that would prove invaluable to investigations following the return of civilian government.

FASIC, less known in Chile and abroad, complemented the work of the Vicaría. FASIC maintained a lower profile because it was more vulnerable than the Vicaría to regime pressures: it did not enjoy the protection of the Catholic Church, and it was denied legal status throughout the dictatorship. It functioned as a branch of the Methodist Church and received funding from the World Council of Churches and other international sources. In addition to general human rights advocacy and aid to the poor, FASIC developed several specialized programs. Among these were family reunification, which helped families of exiles regroup abroad; services for children of the repressed; and counseling for torture victims and families of the killed and disappeared. Beginning in 1983, it played a central role in the effort to end the ban on exiles' return.<sup>89</sup>

From the beginning, the religious-based organizations fostered the creation of new, specialized human rights organizations, sheltered them insofar as possible from the regime's harassment, and provided material and moral support. Some organizations focused on human rights education; others were organizations of family members of victims of specific types of human rights violations. The first established was the Agrupación de Familiares de Detenidos Desaparecidos (Group of Families of the Detained Disappeared, AFDD), founded in 1974. Among the many others were the Agrupación de Familiares de Presos Políticos (Group of Families of Political Prisoners, AFPP, 1976); the Agrupación de Familiares de Ejecutados Políticos (Group of Families of

Those Executed for Political Reasons, AFEP, 1978); the Comité Pro Retorno de Exiliados (Committee for the Return of Exiles, CPRE, 1978); Protección a la Infancia Dañada por los Estados de Emergencia (Protection of Children Damaged by the States of Emergency, PIDE, 1979); the Comité de Defensa de los Derechos del Pueblo (Committee for the Defense of the People's Rights, CODEPU, 1980); and the Comisión Nacional Contra la Tortura (National Commission against Torture, 1983). The Comisión Chilena de Derechos Humanos (Chilean Human Rights Commission), a general advocacy group with a large and diverse membership, was established in 1978. By the end of the military regime, there were fifteen freestanding general and specialized human rights organizations functioning in Chile, and over thirty subsidiary groups.<sup>90</sup>

The dictatorship did all it could to limit the impact of the domestic human rights movement. Through censorship and intimidation, it limited media coverage of human rights issues and organizations. It denounced human rights activists as antipatriotic tools of the international Marxist conspiracy against Chile. A regime spokesman in 1976, for example, vilified those who "sling mud at the fatherland, and join in the foreign conspiracy."<sup>91</sup> The ban on public demonstrations was strictly enforced; when groups challenged this policy, they were forcefully dispersed and often arrested. The dictatorship harassed the human rights organizations by breaking into their offices and destroying their files and by threatening, beating, exiling, and in a few cases murdering their activists. Despite these measures, the human rights movement survived and grew. Its actions likely helped to prevent the toll of state terror from being greater than it was, and over time the movement contributed to eroding the omnipotence and legitimacy of military power.<sup>92</sup>

The international response to Chilean state terrorism was so potent that it resulted in transcendent changes in international human rights advocacy. The reaction was based in part on the nature of the overthrown government: Allende was popular, his experimental road to socialism was widely admired, and he had taken Chile into the Non-Aligned Movement, a large group of developing countries that joined to develop a voice outside the Cold War Soviet-U.S. polarity. The brutality of the coup in a democratic country with a long tradition of civilian governance, along with the death of Allende, which most believed was murder, galvanized people, organizations, and governments around the world.

Revelations about the Nixon administration's involvement in trying to prevent Allende's election and subsequently trying to undermine his government launched the human rights movement in the United States: membership in the U.S. section of Amnesty International grew from three thousand

to fifty thousand between 1974 and 1976. The Washington Office on Latin America, an influential new voice for defending human rights in Latin America, was founded in 1974, and a coalition of groups established the Human Rights Working Group in January 1976. In addition, the U.S. Congress took unprecedented steps to punish a country for human rights violations and to change American foreign policy to include human rights norms.<sup>93</sup>

The Chilean coup and its aftermath also brought about major changes in the UN's approach to human rights. Reflecting governments' unwillingness to grant the international body power to interfere with their treatment of their own citizens, before 1973, the UN's human rights agencies had employed arcane, confidential procedures that produced little or no publicity about governments that violated human rights, and they took no corrective action. The UN had consistently and publicly condemned only two governments, South Africa and Israel, of gross human rights violations—for apartheid and for treatment of Palestinians in the occupied territories. Despite the existence of governments that routinely violated their citizens' human rights, such as the repressive colonels' dictatorship in Greece (1967–1974) and the state terrorist regime of Idi Amin in Uganda (1971–1979), the UN had not taken a strong stand against governments that violated rights for political reasons.

This changed with Chile, when the UN for the first time recognized arbitrary mass detention, torture, and murder as gross human rights violations and sidestepped its rules to make Chile a very public issue. In 1974, the UN Human Rights Commission invited Hortensia Bussi, the widow of Salvador Allende, to address it and established an Ad Hoc Working Group on Chile. The same year, the UN General Assembly issued the first of its annual condemnations of the dictatorship. In 1975, it issued the UN's first declaration against torture in response to the Chilean situation. The UN Human Rights Commission demanded permission to visit Chile but was stalled until 1978. When it finally occurred, the visit was the first ever on-site investigation by the commission. In 1978, the commission went so far as to establish a special trust fund for Chilean victims of torture. Following the 1978 visit, the UN replaced its working group with a special rapporteur, a position it renewed until 1990, and in another precedent-setting move, it appointed a rapporteur specifically to investigate disappearances in Chile. The UN helped keep Chile in the international spotlight for the duration of the military regime.<sup>94</sup>

After the initial barrage of criticism and condemnation, the military government was reluctant to open Chile to inspection by international human rights organizations. After initially denying their requests for on-site visits, the government allowed the Inter-American Commission on Human Rights